



Timberland Regional **LIBRARY**

Board of Trustees Meeting Minutes

November 18, 2020 - 5:30 p.m. via Zoom
Timberland Regional Library
Administrative Service Center
415 Tumwater Blvd. SW
Tumwater, WA 98501

Bob Hall, *President, Pacific County*

Kathy Varney, *Thurston County*

Corby Varness, *Grays Harbor County*

Brian Zylstra, *Lewis County*

Hal Blanton, *At Large, Lewis County*

Nicolette Oliver, *At Large, Thurston County*

Present Board via Zoom:

Bob Hall, Corby Varness, Hal Blanton, Kathy Varney, Brian Zylstra, Nicolette Oliver

Present Staff via Zoom:

Cheryl Heywood, Kendra Jones, Andrea Heisel, Eric Lowell, Brenda Lane, Rose Enos-Weedmark; recorder

President Bob Hall called the Regular Board Meeting to order at 5:30 p.m.

AGENDA:

- 1. Pledge of Allegiance-** Trustee Varney led the pledge
- 2. Welcome and Board Introductions**
- 3. Approval of Agenda** – Trustee Hall requests an amendment of the agenda to include Trustee Questions under Old Business and under New Business a discussion concerning the Collections budget. Amended Agenda Approved.
- 4. Trustee Sequence**

20-62 – HAL BLANTON MADE A MOTION TO APPROVE KATHY VARNEY AS PRESIDENT ELECT. CORBY VARNESSE SECONDED. MOTION APPROVED.

- 5. Correspondence** – at **5:14 of recording** Cheryl shares a correspondence from a Shirley Jackson from November 4th concerning the Amanda Park library. Sharon Gilbert from November 13th is a thank you to TRL staff.
- 6. Public Comments** - None
- 7. Board Comments** – at **7:43 of recording** Trustee Hall states that he is abandoning past practice and going first to discuss Brenda Hirschi's resignation and related subjects. Trustee Hall states that there may be some memory issues amongst the Board and things may not be precisely remembered at different times. He states he can't guarantee his memory is 100% and he doesn't expect others' memories to either, however that is why we have recorded Board meetings, minutes and related documents. Trustee Hall shares that there was a Budget Committee meeting where former Trustee Hirschi inquired about the Administration salaries and were told the Board was aware of those salaries. After the meeting, Kandy sent to the Board, supporting documents from the Committee meeting including the salary of Administration. Trustee Hall states that is the first time he recalls seeing those salaries. At the Policy Committee meeting on November 10th, during a discussion about the Leaves Policy, former Trustee Hirschi pointed out that any staff in grade 52 or higher would receive twenty five days of vacation leave. Trustee Hall states that was not clear or pointed out to the Trustees in previous documents. Concerning the Class and Compensation Study, the Board did receive the four page report, however the pay compensation scale (Appendix A), Trustee Hall was unable to open it on

his computer. Also on November 10th the Board had an Executive Session, and after the meeting former Trustee Hirschi called Trustee Hall and stated that he would need to run the next meeting, with no explanation. Trustee Hall states that he called Trustee Varness to relay a message to former Trustee Hirschi that Trustee Hall did not want her to resign. Trustee Hall shares that former Trustee Hirschi sent out letters to the Trustees and to the County Commissioners in which staff sent replies, however Trustee Hall states that in reviewing the documents, it wasn't as clear as one might gather. Trustee Varney thanks Trustee Hall for his comments and agrees with him completely. Trustee Varness would like to formally say how very sorry she is that former Trustee Hirschi has resigned and feels things could have been dealt with in a different way and earlier. Trustee Varness comments that former Trustee Hirschi was a heck of a board member and a bulldog and shouldn't be faulted for that. Trustee Zylstra shares that former Trustee Hirschi, more than any board member, had taken her role seriously and went beyond, looking at things in depth. Trustee Oliver thanks Trustee Hall for taking the role of President slightly earlier than expected and thanks him for his service. Trustee Oliver shares that the pandemic appears to be here for a while and hopes we can work together, not take stress out on each other, and cooperate respectfully.

8. Executive Director's Report- Cheryl Heywood

Executive Director highlighted the following items:

At 19:48 of the recording

- Eric's last day is Friday November 20, 2020 and Cheryl thanks for him for his years of service and we wish him the best in his future endeavors
- Under his leadership and vision, Eric has left our Finance and IT departments in very strong shape; creating a transparent budget, clean audits, forecasting, historical data, and the selection of accounting software
- The Board Report was written prior to the governor's newest guidance released on Sunday, November 15th that went in to effect Monday, November 16th at midnight, and there have been changes
- Kendra reports that in light of the governor's new guidance we are moving back to take-out only in most of our libraries with some branches allowing 1-6 individuals inside to pick up holds with a time limit of 5 minutes inside. No computer, scanning or copying use with signage explanation, media release, and website updates
- The Encumbered Lands, Department of Natural Resources delayed the video filming due to weather with Jenny Penoyar at South Bend and Emily Popovich at Raymond

9. Financial Statements & Highlights Report – Eric Lowell

Financial Director highlighted the following items:

At 23:18 of recording

- Eric thanks Cheryl for the opportunity to work at Timberland, he has learned and grown a lot. Eric states that our most important asset is our staff. He thanks Andrea for her amazing work in Collections. He commends Kendra for seeing the 'big picture' and being able to juggle things, is quite impressive. He shares that Brenda has made the flow of Facilities, Creative Services, Courier, and HR departments so much better and commends those departments on their customer service skills.
- Eric states that he feels damage was done when the CFP occurred. He expresses it was a traumatic event for him, in which the Board and Administration have not discussed the events and Eric recommends that the Board and Administration schedule a retreat, so that moving forward, things can improve.



- We are at 80% of our property tax revenue as of the end of October and looking at November we are at 92% which is great position for year end
- Expenditures are at 77%, which we should normally be above that
- There were questions concerning negative numbers a few meetings ago with copies and printing; we pay an excise tax for copies and the sale of salvage materials; the sale of salvage materials costs was placed into the copies, however there will still be negative numbers for April and October due to not having any copies but we did still pay our excise tax the following month
- Expenditures were moved from the General Fund to the Building Fund because expenditures for the Winlock refresh were accidentally incorrectly coded

Discussion of Finance Report

Trustee Blanton comments that having clean audits was nicely done. Trustee Blanton comments that Eric stated that 77% in expenditures is low for this time of the year and his thoughts on why it is low. Eric shares that the savings have mostly come from salaries and benefits, with retirements and vacant positions. Cheryl states that another savings came from staff doing the RFID tags during the pandemic, saving TRL approximately \$265,000. Trustee Zylstra seconds Trustee Blanton's comments and commends Eric's work and time at TRL. Trustee Zylstra asks about specific expenditures concerning the Pharos software annual maintenance fees, replacement chairs at the Lacey branch, and the Collections department remodel.

10. Consent Agenda – Motion for approval

20-63 – NICOLETTE OLIVER MADE A MOTION TO APPROVE THE CONSENT AGENDA AS PRESENTED. KATHY VARNEY SECONDED. MOTION APPROVED.

11. Old Business

Trustee Questions Concerning the November 10th Executive Session– Trustee Hall

At 35:45 of recording:

- When and what form is a complaint? Kandy clarifies complaints can be completed on the complaint form or any narrative, preferably in writing, such as a letter, memo, or other written documentation.
- Is there a complaint form? Kandy clarifies there is a form to capture all the needed information but employees are not limited to just the form, it can also be written in the form.
- Who does the complaint go to? Kandy clarifies a complaint from a staff member will go to HR, a complaint about a book that would be library services.
- Who conducts the investigation? Kandy clarifies that it depends on the situation. Sometimes its HR, sometimes it can be our insurance that provides a risk management service and investigators, which is part of the premium we pay.
- When are outside organizations called in such as insurance and/or attorney? Kandy clarifies that we use an attorney for a variety of reasons. For the recent instance, the attorney was brought in to discuss roles and responsibilities with the Board.
- Who has the authority to contact our attorney and incur TRL expenses? Cheryl clarifies that she is the only person to contact or whomever she designates.
- Does the person/s subject to the complaint receive a copy? Kandy clarifies that in general both parties are notified at the conclusion of an investigation.

12. Unfinished Business



13. New Business

- a. Trustee Mail** – Trustee Hall requests that all future Board documents and Policy documents be printed and mailed to the Trustees, unless requested to be paperless
- b. Collections Budget** – Trustee Varness recommends adding to the Collections for additional eBooks. Andrea comments that the additional funding will help with decreasing the hold ratio. Trustee Zylstra recommends that the funding does not come out of the Building Fund.

20-64- CORBY VARNESS MADE A MOTION TO APPROVE ADDITIONAL FUNDING TO THE COLLECTION BUDGET IN THE AMOUNT OF \$500,000. KATHY VARNEY SECONDED. MOTION APPROVED.

14. Committee Reports

- a. **Policy Committee Report** – Hal Blanton
At 46:30 of recording
 i. Bylaws – The change was the addition about quorum that was in the bylaws before. Trustee Varness recommends that the wording be amended to ‘each of four’.

20-65 – HAL BLANTON MADE A MOTION TO APPROVE THE BYLAWS AS PRESENTED WITH THE AMENDMENT. BRIAN ZYLSTRA SECONDED. MOTION APPROVED.

- ## ii. Drug and Alcohol Policy

20-66 – HAL BLANTON MADE A MOTION TO APPROVE THE DRUG AND ALCOHOL POLICY WITH AN AMENDMENT TO REMOVE PATRONS IN THE WORDING. KATHY VARNEY SECONDED. MOTION APPROVED.

- iii. Leaves Policy – Trustee Hall requests to table the motion for various reasons and to go back to the Policy Committee for review

20-67 – HAL BLANTON MADE A MOTION TO APPROVE THE LEAVES POLICY AS PRESENTED. CORBY VARNESSE
 SECONDED. *MOTION TABLED.*

- iv. Employment Policy

20-68 – HAL BLANTON MADE A MOTION TO APPROVE THE EMPLOYMENT POLICY AS PRESENTED. NICOLETTE OLIVER SECONDED. MOTION APPROVED.

- #### v. Equal Employment Opportunity Policy (EEO)

20-69 – HAL BLANTON MADE A MOTION TO APPROVE THE EQUAL EMPLOYMENT OPPORTUNITY (EEO) POLICY AS PRESENTED. KATHY VARNEY SECONDED. MOTION APPROVED.

- vi. Anti-Discrimination and Anti-Harassment Policy 1st review – Trustee Varness recommends the policy include volunteers as they were included in the Drug and Alcohol Policy

- b. Facility Committee Report – Kathy Varney**
At 1:11:44 of recording



- Cheryl reported on Amanda Park concerning alternate location or repairs to existing building with help from Quinault Nation; estimated \$50,000 for existing repairs
- Raymond chimney repairs are complete; waiting for small window repairs; next action is painting and flooring completed by end of the year 2020
- Cheryl adds that staff have been asked to video or take pictures of any refresh/remodels that have occurred for review
- North Mason painting is complete; originally underestimated cost at \$75,000 for carpet; completed project estimated to be between \$125,000 - \$150,000 for mixed flooring and furniture replacement by the end of the year 2020
- Facilities Policy was reviewed and under continued review
- Access Controls and EAH, we are waiting for additional data

15. Executive Session pursuant to RCW 42.30.110, or requested or needed – None.

16. Future Agenda Items

- Quarterly FTE Report
- Motions relating to the Budget prior to the Adoption of the Final Budget
- Review of the Salary Schedule by Kandy Seldin
- Establishing a Committee or Forum to look through transparency for reporting or creating reports

17. Final Board Comments – At 1:19:30 of recording Trustee Blanton thanks Paige for helping with the policies and to all staff for their expertise because it's important to get clarity from Admin and Admin to get clarity from us because we all want the best for TRL. Trustee Blanton also shares that there is a lot of stress going on right now, to take care of ourselves and he will miss former Trustee Hirschi. Trustee Varney would like minutes or notes available in the Board packet from committees. Trustee Varney states that we lost an incredible Trustee and the replacement will have big shoes to fill. Trustee Varness states that Trustees shouldn't feel punished for asking questions. Trustee Varness acknowledges Eric's remarks concerning tensions over old issues, that we will need to work on resolving. Trustee Zylstra wishes everyone a Happy Thanksgiving, it may be a difficult time to be there for each other when we can't be there in person. Trustee Hall states that he agrees with just about everything everyone said in their final comments and makes an announcement that in 2021 they are going to double the Board's pay.

18. Adjournment at 6:55 p.m.

